

25NNCV04748 25NNCV04748

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-15

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The Court's tentative is to GRANT the ex parte request. The plaintiff appears to have failed to amend its complaint within the time allowed by the Court, and, additionally, failed to seek additional time from the Court to file its amended complaint. (See CCP sec. 581(f)(2).)

In fact, a review of the docket suggests that plaintiff's counsel simply forgot about the order regarding time to amend and rushed to amend its complaint immediately once the defendant gave notice of its intent to file the current ex parte. (See Docket entries for 7/6/26.) That the plaintiff finally amended the complaint months after the time allowed by the Court had passed does not appear to save the plaintiff from the consequences of section 581.

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